



Strategic Assessment

Secure, Notify, Preserve • Immediately After Death

Court Compliance & Eligibility

Eligibility, Venue, Parties • Before Court Filing

Petition & Authority

Petition, Notices, Letters • Court Filing → Authority

Asset Discovery

Inventory & Valuation • After Authority Issued

Creditor Claims

Claims & Exposure Management • After Authority Issued

Asset Liquidation

Transfers & Sales (If Needed) • After Inventory Prepared

Final Distribution

Accounting, Distribution, Close • After Claims & Taxes Addressed



Strategic Assessment

CURRENT



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Preliminary Asset & Liability Scan

NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining bond requirements.



Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

☐ **Identify Minor Beneficiaries** OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors

☐ **Evaluate Primary Residence Succession** OPTIONAL

If the estate consists primarily of a primary residence valued under the state's simplified threshold, you may qualify for a simplified succession process.

Check Eligibility

☐ **Initial Property Protection**

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

☐ **Notify Social Security Administration**

Report the death to stop benefit payments and prevent overpayment recovery.

 **Upload Death Certificate**

 **Report Death to SSA**

☐ **Cancel Credit Cards & Subscriptions**

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

☐ **Manage Utilities**

Review decedent's utility accounts (electricity, water, gas).

☐ **Conduct Genealogical Search** OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.

**Locate Important Documents (Intestate)** OPTIONAL

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

[Upload Documents](#)**Establish Estate Financial Account**

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

[Upload Death Certificate](#)[Upload Letters of Authority](#)[Upload EIN](#)**Managed Payment of Immediate Bills**

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

[Track Bills](#)**Obtain EIN for the Estate**

Apply for an Employer Identification Number from the IRS. This unique ID is required to open an estate bank account and for all tax filings.

[Upload IRS Form SS-4](#)[Apply for EIN Online \(IRS\)](#)**File IRS Form 56 (Notice of Fiduciary)**

Formally notify the IRS that you have taken on the role of Executor/Administrator. This ensures that all tax correspondence regarding the decedent is sent to you.

[Upload IRS Form 56](#)[Upload Certified Letters of Authority](#)[Download IRS Form 56](#)**Locate Trust Document & All Amendments**

Find the original signed trust document and any amendments. This is your primary legal authority.

[Upload Original Trust Document](#)[Upload All Amendments](#)**Confirm Successor Trustee Designation**

Verify your appointment as successor trustee per the trust terms.

☐ Sign Trustee Acceptance / Affidavit

Formally accept your role as successor trustee by signing an acceptance document.

 Upload Trustee Acceptance Form

☐ Prepare Certification of Trust

Create a Certification of Trust (abstract of trust) to prove your authority to banks and institutions without revealing full trust terms.

 Upload Certification of Trust

 Upload Death Certificate

☐ Obtain EIN for Trust/Estate

Apply for an Employer Identification Number from the IRS. Required for opening trust bank accounts and filing tax returns.

 Upload IRS Form SS-4

 Apply for EIN Online

☐ File IRS Form 56

Formally notify the IRS of your fiduciary relationship as successor trustee. This ensures tax notices are sent to you directly.

 Upload IRS Form 56

☐ Secure Trust Property

Change locks on real property, forward mail, secure valuables, and ensure insurance coverage remains active.

☐ Issue Certificate of Trust

Prepare and notarize a Certificate of Trust to present successor trustee authority to banks.

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☐ Court Compliance & Eligibility

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**Validate Venue and Court Filing Authority**

Confirm the decedent's legal domicile and county residency to ensure the application is filed in the legally appropriate court.

**Screen Fiduciary Eligibility**

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.

**Validate Interested Parties**

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.

**Compile Will and Testamentary Proofs**

Gather the original valid will, codicils, and secure witness affidavits or self-proving attestations.

**Identify Protected Persons representation**

Screen the interested party list for minors, incapacitated adults, or unknown heirs that require a court-appointed Guardian ad Litem (GAL).

**Prepare Required Notices and Waivers**

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.

**Evaluate Need for Temporary Authority**

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.

**Calculate Court Filing Fees**

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

**Compile Required Court Form Packet**

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.

**File Petition for Guardian Ad Litem**

OPTIONAL

 LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.

**Obtain Guardian Ad Litem Order**

OPTIONAL

 LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.



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**Petition & Authority**

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**File Petition for Probate**

Submit the probate petition and original Will to the court to open the estate case and request appointment as Executor.



Upload Original Will



Upload Death Certificate



Upload Petition Form

**File Petition for Administration**

Submit the administration petition to the court to open the estate case and request appointment as Administrator (since there is no Will).



Upload Death Certificate



Upload Petition Form

**Pay Court Filing Fee** LOCKED

Pay the required court filing fee to process the petition. Fees vary by estate value.

**Submit Oath and Designation** LOCKED

Sign and submit the Oath and Designation form, officially agreeing to serve as the fiduciary.

**Obtain Citation from Court** LOCKED

Receive the issued Citation from the court, which sets the hearing date and commands interested parties to appear.

**Serve Citation on Interested Parties** LOCKED

Serve the Citation to all required heirs and interested parties according to strict statutory rules.

**Attend Probate Hearing** LOCKED

Appear in court for the probate hearing (typically 30–60 days after filing) to confirm the Will and your appointment.

**Attend Administration Hearing** LOCKED

Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.

**Obtain Letters Testamentary** LOCKED

Once the Will is admitted to probate, obtain certified copies of your Letters Testamentary.

**Obtain Letters of Administration** LOCKED

Once the court approves the petition, obtain certified copies of your Letters of Administration.

**File {{smallEstateTerm}}**

Use the {{smallEstateTerm}} to bypass court probate when probate assets are below {{smallEstateThreshold}} ({{smallEstateCitation}}).



Upload Affidavit Form



Upload Death Certificate

**Issue Certificate of Trust** OPTIONAL

Formalize successor trustee authority for trust-held assets.



Upload Trust Agreement

**Obtain Business Operating Authority**

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ **File Petition to Determine Succession to Real Property** OPTIONAL

File petition with court to determine who inherits the primary residence without full probate.

 Upload Petition Form

 Upload Death Certificate

 Upload Property Deed

 About Succession Petitions

Start Succession

☐ **Give Notice of Hearing** OPTIONAL LOCKED

Notify all interested parties of the hearing date for the succession petition.

☐ **Obtain Order Determining Succession to Real Property** OPTIONAL LOCKED

Receive court order determining property succession. Record order with county recorder.

☐ **Track Special Notice Requests** OPTIONAL LOCKED

Maintain list of all parties who have requested special notice. You must serve them copies of ALL court filings.

☐ **Serve All Special Notice Recipients** OPTIONAL LOCKED

Each time you file a document with the court, serve copies by mail on all parties who requested special notice.

☐ **Avoid Bond Cost** LOCKED

Obtain signatures from all heirs to waive the bond requirement, then file the completed waiver with the court.

☐ **Obtain Order Waiving Bond** OPTIONAL LOCKED

Verify that the court has officially waived the bond requirement, typically reflected in a separate Order or the Order for Probate.

☐ **Respond to Objections** OPTIONAL LOCKED

If someone files an objection to the petition or will, you must respond formally and prepare for contest hearing.

**Attend Will Contest Hearing**

OPTIONAL

LOCKED

Appear in court for hearing on objection. Be prepared to present evidence supporting will validity.

**Resolve Will Contest**

OPTIONAL

LOCKED

Obtain court ruling on objection. If will is upheld, proceed with probate. If invalidated, estate becomes intestate. Contested probate can extend the timeline by 6–24 months.

**Identify All Trust Beneficiaries**

Review the trust to identify all current and remainder beneficiaries. Include contingent beneficiaries.



Upload Beneficiary List

**Send Statutory Notice to Beneficiaries**

State law typically requires formal notice to beneficiaries and heirs within a specific timeframe (e.g., 30–90 days).



Upload Notice Letters



Upload Certified Mail Receipts

**Notify State Health Agencies**

The trustee must notify the state Department of Health or Medicaid recovery agency to allow for potential recovery claims.

**Respond to Trust Copy Requests**

Beneficiaries have the right to request a copy of the trust. Respond within the timeframe specified by state law.

**Flag Minor Beneficiaries**

Identify any beneficiaries under age 18. Distributions to minors require special handling.

**Monitor Statutory Contest Period**

Wait for the statutory contest period to expire before making final distributions. Document any contests or concerns raised.



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Asset Discovery

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Letters of Administration required

Upload Documents →



Creditor Claims

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FIDUCIARY RISK: Statutory Debt Priority

Assess creditor claims and potential debts under the statutory priority rules applicable in your state (often including administration expenses and taxes before unsecured debts).



Publish Notice to Creditors (If Required) OPTIONAL

If required or strategically beneficial in your state, publish a notice to creditors using the court-approved or locally accepted format. Publication rules, timing, and whether it affects creditor deadlines vary by state and county.



Upload Draft notice text (as applicable)



Upload Case/filing details (if applicable)



Notify Known Creditors

Notify known creditors as appropriate and document your outreach (e.g., banks, credit cards, medical providers). Requirements and best practices vary by state.



Upload Creditor notice template (if used)



Upload Creditor contact list / notice log



International Fiduciary: W-8BEN/W-8CE Assessment

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

**International Fiduciary: ITIN Acquisition Protocol**

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maximum backup withholding on distributions.

**Evaluate Estate Solvency**

Compare total estate assets to total liabilities, taxes, and administration/funeral expenses to determine whether the estate appears solvent or insolvent.

**Monitor State-Specific Creditor Exposure Period**

Monitor the creditor exposure timeline applicable in your state. The trigger event and timing vary by state and case type. Avoid final distributions until creditor risk is appropriately managed (often by holding reserves and documenting claim handling).

**Monitor Creditor Claim Period**

Monitor the creditor claim period applicable in your state. The timing and trigger events vary by state. This task provides state-specific guidance for creditor claim monitoring.

**Review Submitted Claims**

Examine each creditor claim for validity, amount, and supporting documentation.

[Review Claims](#)**Document Claim Evaluation & Decision**

Evaluate each creditor claim and document your decision (allowed, partially allowed, disputed/rejected) with supporting rationale and evidence. Claims handling procedures vary by state and case type.

**Dispute or Reject Claims (If Applicable)** LOCKED

If a claim is incorrect, unsupported, or disputed, follow your state's procedure to dispute, reject, or negotiate the claim. Keep written documentation of the basis and supporting evidence.

**Pay Approved Claims (By Statutory Priority)** LOCKED

Pay valid debts in the statutory priority order (commonly including administration costs, taxes, secured debts, then unsecured claims). Document each payment and retain receipts.

☐ **Document Proof of Creditor Notice (If Applicable)**

If your state requires proof of creditor notice (publication and/or direct notice), retain and submit the required proof in the format your court or process expects. Even when not required to file, maintaining proof supports a defensible administration record.

 Upload Notice log

 Upload Proof documents (if applicable)

☐ **Creditor Exposure Assessment**

Review known debts and potential claims against the trust estate. This is a silent legal check, not formal probate publication.

☐ **Pay Funeral & Last Illness Expenses**

These are typically the first obligations to pay from trust assets.

 Upload Funeral Invoice

 Upload Medical Bills

☐ **Pay Ongoing Property Expenses**

Maintain trust property by paying mortgage, property taxes, insurance, and utilities from trust accounts.

☐ **Evaluate Trust Solvency**

Compare total trust assets against all known and potential liabilities to determine solvency status.

☐ **Pay Valid Debts**

Pay legitimate debts from trust accounts according to trust terms and state priority rules.

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☐ **Asset Liquidation**

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☐ **Obtain Court Approval for Minor Distributions**

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

 Upload Letters of Authority

 Upload Death Certificate

☐ Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ Complete Property Sale & Transfer

If the estate owns real property and a sale is needed, confirm that the fiduciary has the appropriate legal authority in the target state. before signing a contract. Complete closing, deposit proceeds into the estate account, and retain all closing and tax documents.

Finalize Sale

☐ File Form 1041 (Fiduciary Income Tax)

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

☐ Issue Schedule K-1 to Beneficiaries

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ Pay Final Taxes Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

 Upload All Tax Documents

☐ Prepare Final Accounting LOCKED

Document all income, expenses, and distributions for court review.

☐ File Decedent's Final Form 1040

File the decedent's final individual income tax return for the year of death.

Upload Form 1040

Upload W-2s

Upload 1099s

- Determine Post-Death Tax Posture**
A revocable trust becomes irrevocable at death. Determine whether it's now a grantor trust, complex trust, or simple trust for tax purposes.

- Evaluate Estate Tax Return Requirement**
Determine if Form 706 is required based on total estate value, including trust assets.

Upload Form 706 (if required)

- Obtain Tax Clearances**
Confirm all taxes are paid before making final distributions to beneficiaries.

- Prepare Trust Accounting**
Create a comprehensive accounting of all receipts, disbursements, and distributions for beneficiaries.

Upload Trust Accounting Statement

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Final Distribution

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- Obtain Guardian Approval for Distribution** OPTIONAL LOCKED
Present final distribution plan to guardian ad litem for review and approval before court hearing.

- Setup Blocked Accounts for Minors** OPTIONAL
Ensure funds for minor beneficiaries are placed in court-approved blocked accounts.



File Petition for Final Distribution

LOCKED

Action Plan

YOUR COMPLETE 6-PHASE GUIDE

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Appear in court for approval of final accounting and distribution.



Distribute Assets to Heirs

LOCKED

Transfer remaining assets according to Will and court order.



File Final Accounting with Court

LOCKED

Submit final report showing all transactions and distributions.



Close Estate

LOCKED

File final discharge and close estate bank account.



Prepare Distribution Schedule

Calculate each beneficiary's share according to the trust terms. Document all calculations.



Upload Distribution Schedule



Establish Reserve for Unknown Liabilities

Hold back a reasonable reserve for potential taxes, unknown bills, or administrative costs before final distribution.



Distribute Assets to Beneficiaries

Transfer assets to beneficiaries per the trust terms. Real property may require new deeds.



Upload Transfer Documents



Upload Deeds (if real property)



Obtain Receipts & Global Releases

Have each beneficiary sign a receipt acknowledging their distribution and a GLOBAL RELEASE waiving the right to sue the trustee for past actions.



Upload Distribution Receipts



Upload Global Release & Settlement Agreement

**Send Final Accounting to Beneficiaries**

Provide each beneficiary with a complete accounting showing all transactions during the administration.



Upload Final Trust Accounting

**Close Trust Bank Accounts**

After all distributions are complete, close the trust bank and brokerage accounts.

**Complete Trust Administration**

The trust administration is complete. Retain records for at least 7 years.



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ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.